

Court No. - 48

Case :- WRIT - C No. - 14322 of 2020

Petitioner :- Raj Kumari @ Rajesh Kumari

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rajeev Kumar Sharma

Counsel for Respondent :- C.S.C., Krishna Agarawal

Hon'ble Manoj Misra,J.

Hon'ble Shekhar Kumar Yadav,J.

List of fresh cases has been revised. None is present for the petitioner to press the petition. Sri Krishna Agrawal is present for the respondent.

Put up, as fresh, again on 13th October, 2020 before appropriate Bench.

Order Date :- 23.9.2020

AKShukla/-

Court No. - 46

Case :- WRIT - C No. - 14322 of 2020

Petitioner :- Raj Kumari @ Rajesh Kumari

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rajeev Kumar Sharma

Counsel for Respondent :- C.S.C., Krishna Agarawal

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

At the request of Sri Krishna Agarwal, learned counsel for the respondent nos. 2 and 3, put up this case on 21.10.2020 to enable him to obtain instructions in the matter.

Order Date :- 13.10.2020

Shahnawaz

Court No. - 46

Case :- WRIT - C No. - 14322 of 2020

Petitioner :- Raj Kumari @ Rajesh Kumari

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rajeev Kumar Sharma

Counsel for Respondent :- C.S.C., Krishna Agarawal

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

As prayed by the learned counsel for the petitioner, put up tomorrow i.e. 22.10.2020 as unlisted.

Order Date :- 21.10.2020

M. Tariq

Court No. - 46

Case :- WRIT - C No. - 14322 of 2020

Petitioner :- Raj Kumari @ Rajesh Kumari

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rajeev Kumar Sharma

Counsel for Respondent :- C.S.C., Krishna Agarawal

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

At the request of learned counsel for the petitioner, let the case be placed as unlisted on 4.11.2020.

Order Date :- 22.10.2020

M. Tariq

Court No. - 46

Case :- WRIT - C No. - 14322 of 2020

Petitioner :- Raj Kumari @ Rajesh Kumari

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rajeew Kumar Sharma

Counsel for Respondent :- C.S.C., Krishna Agarwal

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

Heard Sri Rajeew Kumar Sharma, learned counsel for the petitioner, learned Standing Counsel for the respondent no.1 and Sri Krishna Agarwal, learned counsel for respondent nos.2 & 3.

The present writ petition has been filed, seeking the following relief:

I. To issue a writ, order or direction in the nature of certiorari quashing the impugned order dated 6.12.2019 issued through bearing Letter [No.4432/Vi.Vi.Kha.Ha./court case](#) /2019-20 by the respondent no.2 as well as the demand notice dated 4.1.2019 issued by the respondent no.2 of amount of Rs.1,42,9978/;

II. To issue a writ, order or direction in the nature of mandamus directing the respondents to correct the electricity bill of the petitioner;

III. To issue any other suitable order or direction which this Hon'ble Court may deem fit and proper under the facts and circumstances of the case;

IV. To award the cost of the petition in favour of the petitioner.

The petitioner had earlier filed a Writ-C No.1494 of 2019 (Raj Kumari @ Rajesh Kumari Vs. State of U.P. & 2 others) before another Division Bench of this Court seeking quashing of the demand notice dated 4.1.2019 whereby a sum of Rs.142998/- is sought to be recovered from the petitioner towards electricity dues. The said petition was disposed of by order dated 17.1.2019 with a direction that if the petitioner appears before the respondent no.2-Executive Engineer, Dakshinanchal Vidhut Vitran Nigam Ltd. Hamirpur, on 31.01.2019 at 11:00 A.M. alongwith the certified copy of this order and her objection/representation, the respondent no.2 shall hear the petitioner and consider and decide the petitioner's objection / representation in accordance with law within a further period of 15 days.

In compliance of the said order the petitioner approached the respondent no.2 who rejected the representation/claim of the petitioner vide order dated 6.12.2019 which is also challenged in the instant petition.

Sri Krishna Agarwal, learned counsel appearing for the respondent nos.2 & 3 has raised preliminary objection that the petitioner has already availed remedy to file representation before the appropriate authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005 in pursuance of the order dated 17.1.2019 which was rejected by impugned order dated 6.12.2019 and against the impugned order passed thereunder, the petitioner has remedy to approach Consumer Grievance Redressal Forum thereafter before Electricity Ombudsman.

In view of the preliminary objection raised by the learned counsel for the respondent nos.2 & 3, we are not inclined to entertain this writ petition.

The writ petition is accordingly dismissed. The petitioner, if so advised, may take recourse to the remedy available to him.

Order Date :- 4.11.2020

M. Tariq